

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
1	20CV361306	EDGE LAW GROUP vs BOMI JOSEPH et al	The Court set this hearing for Defendants to show cause why terminating sanctions should not be imposed, including striking defendants' answers and dismissing their cross-complaints, for their attempt to commit fraud on the Court during the July 9, 2024 trial setting conference. Nothing is on file with the Court to respond to the two declarations substantiating that this fraud took place. Accordingly, the Court intends to impose the outlined terminating sanctions, default the defendants, and have Plaintiff move forward by default judgment.
2-3	22CV403980	Amel Mohamed vs Akamai Technologies, Inc. et al	Jonathan Cavalier's and Timothy McCarthy's unopposed pro hac vice applications are GRANTED. Court to use form of orders on file.
4	22CV404571	Lori Henderson vs Mark Emerson et al	Plaintiff's motion to compel is GRANTED. Ms. Henderson's declaration sets forth specific facts constituting good cause for believing additional documents exist that were not produced. Defendant's only response to this declaration is to point to its PMQ's deposition testimony that all documents were produced. However, not only was that answer given "subject to objections", but it related to a list of documents served with the PMQ notice, not each of the requests before the Court, and it does not detail what document repositories were searched. Defendant's privacy, trade secret, attorney-client privilege, and relevance objections are not well taken. Defendant is a company; it owns its employees' communications conducted using company equipment; there is no employee right to privacy of those communications. (See, e.g., <i>Holmes v. Petrovich Development Co., LLC</i> (2011) 191 Cal. App. 4th 1047, 1051-1052 (finding employee's communications with counsel using company computers were not protected by the attorney-client privilege.) To the extent Defendant communicated with counsel regarding Ms. Henderson before this lawsuit was filed, those communications are relevant and should be listed on a privilege log, which it appears Defendant did produce. And, Defendant's sales and compensation data can be produced subject to a protective order, if it is in fact trade secret information. Given the nature of the allegations in the complaint, these discovery requests seek relevant information, and Defendant fails to explain the missing information detailed in Ms. Henderson's declaration. Accordingly, with 20 days of service of this formal order Defendant is ordered to (1) amend its written responses to each request to detail (a) what repositories it searched for responsive documents, (b) whether it is withholding any documents based on its objections and, if so what documents and what objections, (c) whether any documents are now missing, and (d) why such documents are missing; (2) produce any additional documents located during this additional search; and (3) pay Plaintiff \$5,685 in sanctions. Court to prepare formal order.

5	23CV418058	Modesta Castaneda vs AMERICAN HONDA MOTOR CO., INC., a California Corporation	Plaintiff Modesta Castaneda's motion to compel strike American Honda Motor Co., Inc.'s objections and compel further responses to Plaintiff's request for production of documents (set two) nos. 10, 14, 23 and 24 is DENIED. First, the Court provided a detailed analysis of the scope of permissible discovery in lemon law cases in its February 2, 2024 order denying Plaintiff's first motion to compel. Plaintiff fails to address what the Court already stated in that order. Next, Plaintiff once again relies on a single meet and confer letter to constitute its meet and confer efforts even though the Court <i>twice</i> admonished Plaintiff that sending a letter, failing to respond to a request for a phone call, then filing a motion was not code-compliant meet and confer. Again, it appears to the Court Plaintiff simply ignored the Court's February 2, 2024 and March 20, 2024 orders. Finally, in response to each of the requests for production Plaintiff seeks to compel, Defendant clearly and unequivocally responded that after a reasonable search, no responsive documents exist to produce. Thus, it is unclear to the Court what Plaintiff would have the Court order produced here, and Plaintiff says nothing about this even in reply. Defendant argues this conduct is sanctionable, and the Court agrees. However, Defendant does not submit any information regarding fees to which Plaintiff could have responded in reply. Suffice it to say at this time that Plaintiff's blatant disregard of the Court's two prior discovery orders and repeated admonishments will be heavily considered when this case is concluded and Plaintiff seeks attorneys' fees under the statute. Court to prepare formal order.
6	23CV427611	Carrie LeRoy vs Robin Love	Defendant's motion for attorneys' fees pursuant to Code of Civil Procedure section 425.16(c)(1) is GRANTED. The Court granted Defendant's anti-SLAPP motion by order dated May 8, 2024. The award of fees to a prevailing defendant on an anti-SLAPP motion is mandatory. (<i>Marshal v. Webster</i> (2020) 54 Cal.App.5th 275, 285.) Anti-SLAPP fee awards should include expenses incurred for all proceedings "directly related" to the special motion to strike and fees "addressing matters with factual or legal issues that are 'inextricably intertwined' with those issues raised in an anti-SLAPP motion." (<i>Henry v. Bank of Am. Corp.</i> (N.D.Cal. Aug. 23, 2010) 2010 WL3324890 *4.) To determine the correct award, the Court applies the lodestar method which is calculated by multiplying "the number of hours reasonably expended. . . by the reasonable hourly rate" of counsel. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 17 Cal.4th 1084, 1095.) To determine reasonableness, the Court considers "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure." (<i>Id.</i> at 1096.) "The verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (<i>Horsford v. Board of Trustees of Cal. St. Univ.</i> (2005) 132 Cal.App.4th 359, 396; <i>Martino v. Denevi</i> (1986) 182 Cal.App.3d 553, 559.) Defendant's rate of \$600 per hour is reasonable for this case type in Santa Clara County. The Court has reviewed Defense counsel's time sheets and finds the number of hours spent on this case to be reasonable given the nature of this particular case, which involves numerous factual assertions amongst numerous purported witnesses, each of which had to be researched and fact checked. The Court carefully considered whether the fees incurred after the anti-SLAPP motion was granted were appropriately awarded here, and concludes that those fees are properly awarded because they were incurred in direct relation to this motion for attorneys' fees, which fees are plainly recoverable. Plaintiff is accordingly ordered to pay Defendant \$76,852.18 in attorneys' fees and costs. Court to prepare formal order.
7	23CV428303	John Doe R.V.R. vs Robert Crose, an individual et al	Santa Clara County's Demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND. Scroll to line 7 for complete ruling. Court to prepare formal order.